



United States
Attorney's Office
District of Massachusetts



PRESS RELEASE

Former eBay Employee Sentenced for Role in Aggressive Cyberstalking Campaign



Tuesday, July 27, 2021

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

BOSTON – A former supervisor of security operations for eBay's was sentenced today for his role in a cyberstalking campaign targeting a Natick, Mass. couple who published a newsletter that eBay executives viewed as critical of the company.

Philip Cooke, 56, of San Jose, Calif., a former police captain in Santa Clara, Calif., was sentenced by U.S. District Court Judge Allison D. Burroughs to 18 months in prison and three years of supervised release with the first year spent in home detention. Cooke was also ordered to pay a fine of \$15,000 and to perform 100 hours of community service. In October 2020, Cooke pleaded guilty to conspiracy to commit cyberstalking and conspiracy to tamper with witnesses.

Cooke admitted to conspiring with six other former eBay employees. David Harville, of New York City, and James Baugh, of San Jose, Calif., were charged on June 15, 2020, with conspiracy to commit cyberstalking and conspiracy to tamper with witnesses and are pending trial. Stephanie Popp and Veronica Zea, both of San Jose, Calif., pleaded guilty on Oct. 8, 2020 and are scheduled to be sentenced on Sept. 28, 2021. Stephanie Stockwell, of Redwood City, Calif., and Brian Gilbert, of San Jose, Calif., pleaded guilty on Oct. 29, 2020 and are scheduled to be sentenced on Sept. 28, 2021 and Sept. 30, 2021, respectively.

According to the charging documents, the victims of the cyberstalking campaign were a Natick couple who are the editor and publisher of an online newsletter that covers ecommerce companies, including eBay. Members of eBay's executive leadership team followed the newsletter's posts, often taking issue with its content and the anonymous comments underneath the editor's stories.

It is alleged that in August 2019, the defendants executed a three-part harassment campaign against the Natick couple. Among other things, several of the defendants ordered anonymous and disturbing deliveries to the victims' home, including a preserved fetal pig, a bloody pig Halloween mask and a book on surviving the loss of a spouse.

As part of the second phase of the campaign, some of the defendants allegedly sent private Twitter messages and public tweets criticizing the newsletter's content and threatening to visit the victims in Natick. The charging documents allege that Cooke, Baugh, Gilbert and Popp planned these messages to become increasingly disturbing, culminating with "doxing" the victims (i.e., publishing their home address). It is alleged that the same group intended then to have Gilbert, a former Santa Clara police captain, approach the victims with an offer to help stop the harassment that the defendants were secretly causing, in an effort to promote good will towards eBay.

The third phase of the campaign allegedly involved surveilling the victims in their home and community. The victims spotted the surveillance, however, and notified the Natick Police, who began to investigate.

Aware that the police were investigating, the defendants allegedly sought to interfere with the investigation. For example, Cooke and, allegedly, several of the other defendants discussed the possibility of presenting Natick Police with a false investigative lead to keep the police from discovering video evidence that could link some of the deliveries to eBay employees. As the police and eBay's lawyers continued to investigate, the defendants allegedly deleted digital evidence that showed their involvement, further obstructing what had by then become a federal investigation.

Acting United States Attorney Nathaniel R. Mendell; Joseph R. Bonavolonta, Special Agent in Charge of the Federal Bureau of Investigation, Boston Division; and Natick Police Chief James G. Hicks made the announcement today. eBay provided valuable assistance and cooperation with the federal investigation. Assistant U.S. Attorney Seth B. Kosto, Deputy Chief of Mendell's Securities, Financial & Cyber Fraud Unit, is prosecuting the case.

The details contained in charging documents as to defendants Harville and Baugh are allegations. They are presumed innocent unless and until proven guilty beyond a reasonable doubt in a court of law.

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